

Connecticut Record Erasure

Agent Training Reference

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A complete operational knowledge base for clearing criminal records in Connecticut: automatic non-conviction erasure, the Clean Slate Act (PA 21-42) automatic and petition erasure of convictions, Cannabis erasure, and Absolute Pardons through the Board of Pardons and Paroles — all under the single statutory umbrella of 'erasure' in Conn. Gen. Stat. § 54-142a.

Coverage	State of Connecticut (Superior Court where sentenced; Board of Pardons and Paroles for pardons)
Primary statutes	Conn. Gen. Stat. § 54-142a (erasure); PA 21-42 (Clean Slate); §§ 54-130a to 130e (pardons)
Controlling changes	Clean Slate Act (PA 21-42, 2021); Cannabis erasure (auto Jan 2023); automatic erasure launched after delays, ~50,000 records erased by Oct 2025
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, including the resumed Clean Slate automatic erasure

VERIFY BEFORE RELYING

Connecticut calls all of this ERASURE — not expungement or sealing — and the agent must use that term. There are three different paths and they must not be conflated: (1) automatic non-conviction erasure under § 54-142a; (2) Clean Slate erasure of convictions (PA 21-42), which is AUTOMATIC for post-2000 convictions but requires petition JD-CR-202 for pre-2000 convictions; and (3) an ABSOLUTE PARDON from the Board of Pardons and Paroles, the route for convictions Clean Slate does not reach. Clean Slate automatic erasure was delayed for years and only resumed at scale in late 2025; the agent must verify a record's actual erasure status rather than assuming the automatic process has reached it.

How the agent should use this document

Connecticut clears records by ERASURE under § 54-142a. The agent routes by disposition and goal: (1) a NON-CONVICTION (dismissal, nolle after 13 months, acquittal, completed diversionary program) is erased automatically by operation of law; (2) an eligible CONVICTION is erased through Clean Slate — automatically if entered on or after January 1, 2000 and the waiting period has run, or by petition (JD-CR-202) if entered before 2000; and (3) a conviction Clean Slate cannot reach (or that the person wants cleared now) goes to the Board of Pardons and Paroles for an ABSOLUTE PARDON. A Provisional Pardon / Certificate of Employability does NOT erase — it only relieves employment and licensing barriers.

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Statutory shorthand used throughout

Term	Meaning
Erasure	Connecticut's single term for record clearing (§ 54-142a); record erased, person may swear the arrest/conviction never occurred. Not 'expungement' or 'sealing'
Clean Slate (PA 21-42)	2021 law erasing most misdemeanors / lower felonies entered on/after 1/1/2000; automatic for post-2000, petition for pre-2000
Absolute Pardon	Board of Pardons and Paroles full pardon = complete erasure; the route for convictions Clean Slate does not reach
Provisional Pardon / COE	Certificate of Employability — employment/licensing relief only; does NOT erase the record
Cannabis erasure	Auto-erasure of § 21a-279(c) possession convictions (1/1/2000–9/30/2015); took effect Jan 2023
BOPP	Board of Pardons and Paroles — grants pardons; applications filed online via the ePardon portal
SPBI	State Police Bureau of Identification — source of the official criminal history record check
JD-CR-202	Judicial Branch Petition for Clean Slate Erasure (pre-2000 convictions or missed automatic erasures)

1. Eligibility rules

Three paths, routed by disposition and goal.

Path 1 — Automatic non-conviction erasure (§ 54-142a). The broadest and fastest relief, by operation of law with no filing: a case dismissed, nolle (erased 13 months after the nolle if not re-filed), or ended in acquittal, and charges resolved through a completed diversionary program (Accelerated Rehabilitation, the Family Violence Education Program, the Impaired Driver Intervention Program, etc.), are erased automatically.

Path 2 — Clean Slate erasure of convictions (PA 21-42). Most misdemeanors and certain lower-level felonies (Class D and E felonies and unclassified felonies carrying up to a 5-year term) entered on or after January 1, 2000 are erased. For convictions entered on or after 1/1/2000 this is AUTOMATIC once the waiting period runs; for convictions entered BEFORE 1/1/2000 the person files petition JD-CR-202 with the sentencing court. Offenses committed before the person turned 18 are also erased.

Path 3 — Absolute Pardon (Board of Pardons and Paroles). For convictions Clean Slate does not reach — higher felonies, or cases the person wants cleared now rather than waiting on the automatic process. An Absolute Pardon results in complete erasure of the Connecticut adult criminal record. A Provisional Pardon / Certificate of Employability is a separate, lesser remedy that protects employment and licensing but does not erase.

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AGENT GUIDANCE

Route by disposition: non-conviction → automatic erasure (no filing); eligible post-2000 conviction → Clean Slate automatic; pre-2000 eligible conviction → JD-CR-202 petition; conviction Clean Slate can't reach → Absolute Pardon at BOPP.

Always name the remedy as ERASURE, and distinguish an Absolute Pardon (erases) from a Provisional Pardon / Certificate of Employability (employment relief only, no erasure).

2. Waiting periods

Conviction waits run from the person's MOST RECENT conviction for any crime, after the full sentence (including incarceration, parole, special parole, and probation) is complete.

Disposition / path	Remedy	Waiting period
Dismissal / acquittal	Auto erasure (§ 54-142a)	Immediate
Nolle (charges dropped)	Auto erasure	13 months (if not re-filed)
Completed diversionary program	Auto erasure on completion	On completion
Misdemeanor conviction (post-2000)	Clean Slate (automatic)	7 years from last conviction
Class D/E or unclassified felony (≤5 yr)	Clean Slate (automatic)	10 years from last conviction
Eligible conviction entered pre-2000	Clean Slate by petition (JD-CR-202)	Same 7 / 10-year rule
Misdemeanor — Absolute Pardon	BOPP pardon	3 years from disposition
Felony — Absolute Pardon	BOPP pardon	5 years from disposition

The Clean Slate clock is measured from the person's most recent conviction for ANY crime, not just the one being erased, and only after the entire sentence including parole, special parole, transitional supervision, and probation has been served. A § 21a-279(c) cannabis possession conviction erased under the Cannabis law does not count as a conviction for setting that date.

AGENT GUIDANCE

Compute the Clean Slate wait from the LAST conviction for any crime (7 yrs misdemeanor / 10 yrs felony), after the full sentence and all supervision are complete.

Pardon waits are different and shorter (3 yrs misdemeanor / 5 yrs felony from disposition) but require an application and a BOPP hearing — only eight full-pardon hearing cycles a year.

3. Disqualifying / ineligible offenses

Clean Slate erasure is offense-limited; the pardon route is broader but discretionary.

Excluded from Clean Slate erasure:

Family violence crimes — categorically excluded from Clean Slate.

Offenses requiring sex-offender registration / sexual offenses — excluded.

Firearms offenses — not eligible for Clean Slate erasure.

Felonies above Class D/E or unclassified felonies carrying more than a 5-year term — outside Clean Slate's scope (pardon route only).

Certain drug-possession crimes carry a statutory exception to the 'most recent conviction' rule — check § 54-142a(e).

Pardon route as the fallback. The Board of Pardons and Paroles may pardon any offense against the state, including crimes outside Clean Slate's scope, but it is discretionary and hearing-based. Family violence and serious offenses are not statutorily barred from a pardon the way they are from Clean Slate, but the Board weighs them heavily.

VERIFY BEFORE RELYING

The Clean Slate eligible-offense list (Class D/E and unclassified ≤5-year felonies, most misdemeanors) and its exclusions (family violence, sex, firearms) are defined by statute and the § 54-142a(e)(2)(C) list; the agent must confirm the specific offense's class and the current exclusion list, and verify whether the automatic process has actually erased a given record, before relying.

4. Case outcome rules

Disposition determines the path, the wait, and the procedure. This is the agent's primary routing logic for Connecticut.

Case outcome	Path	Form / venue	Wait
Dismissal / acquittal	Auto non-conviction erasure	None	Immediate
Nolle	Auto erasure	None	13 months
Completed AR / FVEP / IDIP	Auto erasure	None	On completion
Misdemeanor conviction, post-2000	Clean Slate automatic	None (auto)	7 yrs
Class D/E felony, post-2000	Clean Slate automatic	None (auto)	10 yrs
Eligible conviction, pre-2000	Clean Slate by petition	JD-CR-202, sentencing court	7 / 10 yrs
Cannabis possession 21a-279(c), 2000–15	Cannabis auto erasure	None (auto)	Jan 2023
Conviction outside Clean Slate	Absolute Pardon	ePardon, BOPP	3 / 5 yrs
Employment/licensing relief only	Provisional Pardon / COE	ePardon, BOPP	Varies

Effect of relief: an ERASURE (whether automatic, Clean Slate, or via Absolute Pardon) erases the record and lets the person swear under oath the arrest or conviction never occurred; no fee is charged and outstanding court debt does not bar erasure (though the debt itself is not eliminated). A Provisional Pardon / Certificate of Employability does not erase and the person must still disclose where required.

AGENT GUIDANCE

Tell users plainly: erasure (auto, Clean Slate, or Absolute Pardon) removes the record and is deniable; a Provisional Pardon / COE only opens employment and licensing doors.

If a post-2000 record should have erased automatically but didn't, the user can request a hearing — start with an SPBI criminal-history check dated on or after January 1, 2024.

5. Required forms

Most Connecticut erasure happens automatically with no form. Forms arise for pre-2000 petitions, missed automatic erasures, and pardons.

Form / channel	Use
None (automatic erasure)	Non-convictions and post-2000 Clean Slate-eligible convictions erase by operation of law — no filing.
JD-CR-202 — Petition for Clean Slate Erasure	Convictions entered BEFORE 1/1/2000, filed with the court where sentenced; also the basis for requesting review of a missed automatic erasure.
SPBI criminal-history record check	State Police Bureau of Identification report (dated on/after 1/1/2024) to confirm convictions and support a hearing request.
ePardon application — Absolute Pardon	Board of Pardons and Paroles online application for full erasure of convictions; submitted online only.
ePardon application — Certificate of Employability	Provisional Pardon for employment/licensing relief; online only; not available while incarcerated.

Clean Slate and Cannabis erasure are designed to require nothing from the person. The petition (JD-CR-202) exists for the pre-2000 gap and for cases the automatic system missed; pardons are an entirely separate executive-branch process run by the Board of Pardons and Paroles, filed online through the ePardon portal.

AGENT GUIDANCE

Default to 'no form needed' for non-convictions and post-2000 eligible convictions; reach for JD-CR-202 only for pre-2000 convictions or a missed automatic erasure.

Pardons are filed online at the BOPP ePardon portal, not with the court — keep the court track and the pardon track distinct for the user.

6. Filing instructions

Automatic erasure needs no filing; petitions go to the sentencing court; pardons go to BOPP online.

- 1. Get the record.** Request an SPBI criminal-history check (dated on/after 1/1/2024) to confirm each conviction, its class, the disposition, and the most-recent-conviction date that starts the Clean Slate clock.
- 2. Determine the path.** Non-conviction → automatic; post-2000 eligible conviction → Clean Slate automatic; pre-2000 eligible conviction → JD-CR-202; conviction outside Clean Slate → Absolute Pardon.
- 3a. Automatic erasure.** Nothing to file. If a record that should have erased did not, request a hearing using the SPBI report.
- 3b. Petition (JD-CR-202).** Complete and file with the court where you were sentenced for the conviction(s) you want erased.

3c. Absolute Pardon. Apply online through the BOPP ePardon portal after the 3-year (misdemeanor) / 5-year (felony) wait; expect a 12–18 month process and a Board hearing.

4. No fee. Erasure carries no fee, and court debt does not bar it.

5. Confirm completion. After erasure, the record should not appear on background checks; background screeners are required to update their records.

AGENT GUIDANCE

Start every Connecticut analysis with a current SPBI check — it sets the most-recent-conviction date the whole Clean Slate timetable turns on.

Set expectations on pardons: online-only application, 12–18 months, only eight full-pardon hearing cycles a year.

7. Court-specific quirks

The features most likely to surprise.

It's 'erasure,' not expungement or sealing. Connecticut uses one term across all paths; using another confuses users and screeners.

Clean Slate was delayed for years. Automatic erasure stalled on data and IT problems; it only resumed at scale in late 2025 (~50,000 records by Oct 2025). Never assume a record was auto-erased — verify.

The clock runs from the LAST conviction for any crime. A later, unrelated conviction resets the Clean Slate waiting period for everything.

Pre-2000 convictions need a petition. The automatic process only reaches post-1/1/2000 convictions; older ones require JD-CR-202.

Pardon vs. Provisional Pardon. Only an Absolute Pardon erases; a Provisional Pardon / Certificate of Employability is employment/licensing relief and leaves the record intact.

Cannabis erasure is its own lane. § 21a-279(c) possession convictions from 2000–2015 auto-erased in Jan 2023 and don't count toward the most-recent-conviction date.

No fee; court debt is not a bar. Erasure costs nothing and unpaid court debt does not block it (though the debt remains owed).

AGENT GUIDANCE

Lead with the term 'erasure' and the most-recent-conviction rule; those two frame almost every Connecticut conversation. Because the automatic rollout was so troubled, proactively check whether an eligible record actually erased rather than assuming the state reached it.

8. Fee information

Connecticut erasure is free; the only costs are records checks and (optionally) counsel.

Item	Amount	Note
Automatic / Clean Slate / Cannabis erasure	\$0	No fee charged (§ 54-142a)
JD-CR-202 petition	\$0	No fee for Clean Slate erasure
Absolute Pardon / COE application	\$0	BOPP charges no application fee

SPBI criminal-history check	SPBI fee	Required to confirm record / support a hearing
Outstanding court debt	Not a bar	Does not block erasure; debt remains owed
Attorney fees (if represented)	Varies	Not required; legal-aid and clinics assist free

VERIFY BEFORE RELYING

The SPBI records-check fee and any administrative costs can change; the agent should verify the current SPBI fee and request process at the time of advising rather than quoting a fixed figure from memory.

9. Criminal history (SPBI) request process

Reviewing the record first confirms convictions, their classes, and the most-recent-conviction date that drives the Clean Slate timetable.

A. State history — SPBI. The State Police Bureau of Identification maintains the official Connecticut criminal history; a current check (dated on or after January 1, 2024, for Clean Slate purposes) is the starting point and supports a hearing request if an eligible record was not erased.

B. Court record. The Judicial Branch case look-up confirms dispositions and the sentencing court for a JD-CR-202 petition. An erased case is removed from public access.

C. Federal — FBI Identity History Summary. For records that may extend beyond Connecticut, the FBI fingerprint-based summary is the federal equivalent; Connecticut erasure reaches Connecticut records only.

AGENT GUIDANCE

Order the SPBI check first and confirm it is dated on/after 1/1/2024 for Clean Slate work; it both confirms eligibility and is the evidence for a missed-erasure hearing.

10. Sample petitions and completed examples

Most Connecticut erasure is automatic; the examples below show the petition and pardon paths. Names, dates, and identifiers are fictional and illustrative.

Example A — Petition for Clean Slate Erasure (JD-CR-202, pre-2000 conviction)

SUPERIOR COURT, JUDICIAL DISTRICT OF HARTFORD
 STATE OF CONNECTICUT v. DEVON R. PRATT Docket No. H14M-CR98-0123456
 PETITION FOR CLEAN SLATE ERASURE (C.G.S. 54-142a)
 1. Petitioner: Devon R. Pratt; DOB 03/05/1976.
 2. On 06/12/1998 petitioner was convicted of larceny in the sixth degree, a class C misdemeanor, in this court.
 3. The conviction was entered BEFORE January 1, 2000, so it is not reached by automatic erasure and is petitioned here.
 4. Petitioner has not been convicted of any crime within the last 7 years (misdemeanor waiting period).
 5. Petitioner has completed the entire sentence, including any incarceration, parole, and probation.
 6. No criminal proceeding is pending against petitioner.
 WHEREFORE petitioner asks the Court to erase all records of this conviction under C.G.S. 54-142a. (No fee.)

Examples B, C & D — Other routes

B. AUTOMATIC NON-CONVICTION ERASURE (54-142a) -- NO FILING:
A dismissal or acquittal erases immediately; a nolle erases 13 months after entry if not re-filed; a completed AR, FVEP, or IDIP diversionary program erases on completion.

C. CLEAN SLATE AUTOMATIC ERASURE (PA 21-42) -- NO FILING:
A post-1/1/2000 misdemeanor erases 7 years after the last conviction for any crime; a Class D/E or unclassified (<=5 yr) felony erases at 10 years. Sex, family violence, and firearms offenses are excluded.

D. ABSOLUTE PARDON (BOPP ePardon) -- ONLINE APPLICATION:
For a conviction outside Clean Slate, apply online 3 years (misdemeanor) or 5 years (felony) after disposition. An Absolute Pardon fully erases; a Provisional Pardon / Certificate of Employability gives employment relief only.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Connecticut statutes and common practice and is not legal advice. Connecticut clears records by ERASURE under Conn. Gen. Stat. § 54-142a; the Clean Slate Act (PA 21-42) automates erasure of eligible post-2000 convictions but launched at scale only in late 2025 after years of delay, and pre-2000 convictions require petition JD-CR-202; Absolute Pardons run through the Board of Pardons and Paroles. The agent must verify the current text of § 54-142a, the Clean Slate eligible-offense list and exclusions, the waiting periods, the actual erasure status of a given record, and the pardon process before relying on any rule here.